

GZ: 2023-0.336.563 dated September 18, 2023 (Case Number: DSB-D124.0328/23)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

PARTIAL DECISION RULING

The
Data Protection Authority
decides
on
the
data protection complaint
of
Ulrich
A***

(complainant), represented by Dr. Hermann B*** Law Firm KG dated February 15, 2023
against the Upper Austria State Police Directorate (respondent) regarding the violation of the right
to confidentiality as follows:

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The complaint is partially upheld, and it is determined that the
respondent has violated the complainant's right to confidentiality
by unlawfully collecting his personal data in the context of an
identification measure on January 12, 2023.

Legal bases: §§ 1, 33, 36, 38, and 45 of the Data Protection Act – DSG, Federal Law Gazette I No.
165/1999

as amended; §§ 16 para. 2, 65, 73, 75, and 90 of the Security Police Act – SPG, Federal Law Gazette
No. 566/1991 as amended.

REASONING

A. Submissions of the parties and procedural history

1. The complainant stated in his submission dated February 15, 2023, to the Data Protection Authority
that the respondent violated his right to confidentiality
and the right to deletion by subjecting him on January 12, 2023, to a violent identification procedure
involving the taking of fingerprints, the collection of measurements, and the taking of photographs.
In summary, the complainant was confronted with the false accusation that he had
misappropriated a parcel that he found at the post office next to a drop-off machine. He went to the
police to accurately report the facts and attempted to obtain legal advice regarding the finder's fee,
which the officers were unable to provide him.

The complainant submitted a deletion request to the respondent on January 13, 2023, to which the
respondent did not respond in their reply dated January 24, 2023.

2. The respondent replied with a statement dated March 6, 2023, summarizing that
the complainant was subjected to an identification procedure by officers of the respondent
who were investigating the complainant as a suspect due to the suspicion of misappropriation pursuant
to § 134 StGB. The justified suspicion of the existence of the offense and the nature of the criminal act
attributed to the complainant (misappropriation in the sense of § 134 StGB) justified the conduct of an
identification measure at the time it was carried out.

The complainant does not address in his complaint why the respondent violated his right to
confidentiality of protectable personal data. The processing of the complainant's personal data, which
necessarily occurred in connection with the official act in question, is justified or permissible according
to § 74 para. 1 StPO. Deletion of this data occurs ex officio in accordance with the applicable
destruction regulations. The processing of the complainant's identification data occurs on the basis of
§ 65 SPG; deletion occurs ex officio according to § 73 para. 1 no. 4 SPG when the suspicion of the

offense ceases (e.g., upon discontinuation of the proceedings according to § 190 StPO by the public prosecutor's office).

3. In a submission dated April 13, 2023, the complainant essentially argued that there was not a legally compliant offense present, let alone did the existing facts provide a prognosis that a further "dangerous attack" in the sense of the law was to be expected. Furthermore, there was also a lack of sufficient grounds for the prognosis to be made according to § 67 para. 1 SPG. The complainant contended that the conditions under § 65 para. 1 and § 67 para. 1 SPG were not met and therefore the conduct of the identification procedure was unlawful, and thus the deletion request should have been granted. The statements of the authority concerned neither align with the case law nor do they find support in the law.

4. In a submission dated May 2, 2023, the complainant submitted the ruling of the Upper Austria Administrative Court regarding GZ: LVwG-780266/7/KLi/NF dated April 21, 2023.

5. In a submission dated May 11, 2023, the respondent summarized that regarding the alleged violation of the right to deletion, it was communicated that upon reevaluation of the facts, particularly considering the decision of the Upper Austria Administrative Court, the request of the complainant was met in accordance with § 24 para. 6 DSG. The complainant was informed.

6. The complainant did not submit any further statements within the deadline despite a corresponding request. A corresponding forwarding report is attached to the file, and there is no error message from an email server.

7. By decision dated August 4, 2023, the Data Protection Authority discontinued the proceedings regarding the right to erasure pursuant to § 24 para. 6 DSG and granted the respondent the right to be heard regarding the right to confidentiality.

8. In a submission dated August 7, 2023, the respondent essentially reiterated its argument that the identification-related treatment in question had been declared unlawful by the ruling of the Upper Austrian Administrative Court dated April 21, 2023, GZ: LVwG-780266/7/KLi/NF. Subsequently, the identification-related data had been deleted without delay, and the complainant had been informed of the deletion by letter dated May 11, 2023.

B. Subject of the Complaint

The subject of the complaint is the question of whether the respondent violated the complainant's right to confidentiality by unlawfully collecting the complainant's personal data in the context of an identification-related measure.

C. Findings of Fact

1. On January 7, 2023, the complainant was in V***-City. At the post office near the parcel vending machines, he found a package whose owner was apparently not nearby. The complainant initially handed this package over at the information desk of V***-City. A short time later, he retrieved it from there and, according to his own statements, intended to take it to the lost property office to also receive a finder's fee.

2. According to the complainant's statements, he had often not received a finder's fee, which is why he took the package back to ensure that he would receive the finder's fee he was entitled to this time. The complainant initially took the package home. He opened the package there to inspect its contents. According to his statements, he wanted to determine the value of the find and the corresponding finder's fee.

3. Finally, the complainant went to the police station M***gasse on January 9, 2023, around 2:00 PM, and made the statements reproduced in points 1 and 2 there. He was asked by the intervening police officers to hand over the package to the lost property office of the Magistrate of Linz. Furthermore, he was informed about the legal consequences of not handing it over (embezzlement pursuant to § 134 StGB). The complainant was also informed that he would not be given the owner's data, but that he should provide his own data. This was refused by the complainant. The complainant then left the police station M***gasse.

Subsequently, a police patrol went to the complainant's address at 2:35 PM. There, the package was taken from the complainant and secured. The complainant refused to answer the questions directed at him. Finally, the complainant returned to the police station M***gasse at 3:00 PM and requested a

confirmation and the service numbers of the intervening officers. At 4:00 PM, a seizure protocol was handed to the complainant. In addition, he was questioned about the suspicion of embezzlement pursuant to § 134 StGB. The complainant refused to cooperate and requested a written summons.

4. With a "Summons of the Accused in the Investigation Procedure" dated January 9, 2023, the complainant was summoned to the police station M***gasse on January 12, 2023, from 2:00 PM to approximately 4:00 PM. The subject of the interrogation was stated as "embezzlement of found property." Furthermore, the complainant was informed that it was necessary for him to appear in person. Additionally, it was announced to the complainant that an identification-related treatment would be conducted following the interrogation.

5. The complainant complied with this summons. He arrived at the relevant authority on January 12, 2023, at 2:00 PM, where an interrogation of the accused was initially conducted. This interrogation ended at 2:50 PM. Subsequently, an identification-related treatment was carried out, during which fingerprints, measurements, and photos of the complainant were taken, although the complainant initially refused to cooperate. The complainant was informed that this identification-related treatment could also be conducted forcibly. The complainant then accompanied the intervening police officers in a police vehicle from the police station M***gasse to the police detention center at Nietzschestraße 33, 4020 Linz. Although the complainant explicitly stated that he did not agree to the identification-related treatment, he allowed it after the threat of the use of force.

6. By ruling dated April 21, 2023, regarding GZ: LVwG-780266/7/KLi/NF, the Upper Austrian Administrative Court declared the identification-related treatment of the complainant conducted by the organs attributable to the respondent to be unlawful.

7. The data of the complainant collected during the identification-related treatment on January 12, 2023, were deleted by the respondent, and the complainant was informed of this on May 11, 2023.

Assessment of Evidence: The findings made arise from the correspondingly consistent submissions of both parties and, in particular, from the ruling of the LVwG OÖ dated April 21, 2023, regarding GZ LVwG-780266/7/KLi/NF.

D. From a legal perspective, it follows that:

1. Regarding the scope of the 3rd main part of the DSG

In the present case, it is undisputed that it involved data processing according to § 36 para. 1 DSG by a public sector controller, carried out for the purpose of preventing, investigating, detecting, or prosecuting criminal offenses.

Therefore, the provisions of the 3rd main part of the DSG apply.

2. Regarding the distribution of roles in data protection law

The respondent, in its capacity as a security authority of the first instance (cf. § 8 no. 6 SPG), is responsible for the collection and storage of the relevant identification data of the complainant and is thus to be qualified as a data protection controller according to § 36 para. 2 no. 8 DSG.

This was also explicitly confirmed by the respondent.

3. Regarding the admissibility of the initial collection of the complainant's identification data according to § 65 para. 1 SPG

According to the constitutional provision of § 1 para. 1 DSG, everyone has the right to confidentiality regarding their personal data, particularly with respect to the respect for their private and family life, as long as there is a legitimate interest in it.

First, it must be examined whether the initial collection of the complainant's identification data during his interrogation on January 12, 2022, was lawful (cf. § 45 para. 1 no. 2 DSG).

According to § 38 DSG, the processing of personal data is only lawful if it is not necessary to protect the vital interests of a person, provided that it is provided for by law or in directly applicable legal provisions that have the rank of law domestically, and is necessary and proportionate for the fulfillment of a task carried out by the competent authority for the purposes mentioned in § 36 para. 1 leg. cit.

Such a legal basis for the collection of identification data can be found in § 65 SPG.

According to § 65 para. 1 SPG, security authorities are authorized to treat a person who is suspected of having committed an intentional act punishable by law as an identification subject if they acted within the framework of a criminal association or if this appears necessary due to the nature or execution of the act or the personality of the affected person to prevent dangerous attacks.

The admissibility of identification treatment thus requires, in addition to the suspicion of committing a punishable act, that the suspect either acted within the framework of a criminal association or that, due to the nature or execution of the act or the personality of the affected person, the identification treatment appears necessary to prevent further dangerous attacks (cf. the ruling of the VwGH of May 31, 2012, file no. 2011/01/0276, and from June 18, 2014, 2013/01/0134). It is precisely this probable risk of recidivism that must be adequately countered by the identification measure (cf. Thanner/Vogl, Sicherheitspolizeigesetz², 671).

It is crucial to determine whether there is a probable likelihood of committing an offense based on the nature or execution of the act or the personality of the affected person. However, an individual case assessment is necessary, as otherwise, any offense would abstractly appear to present a risk of recidivism, thus justifying identification treatment at any time (cf. the decision of the DSB of October 20, 2017, GZ: DSB-D122.734/0005-DSB/2017).

At that time, the complainant was suspected of having committed embezzlement according to § 134 StGB.

The first requirement, namely the suspicion of having committed an intentional act punishable by law, is therefore fulfilled. Whether the complainant actually intended to commit embezzlement remains to be seen for further legal assessment.

The Administrative Court consistently holds in its case law that even an abstract form of probability linked to the actual offense is sufficient to assume that the identification treatment is necessary to prevent further dangerous attacks (cf. for example, the rulings of May 18, 2009, file no. 2009/17/0053, and July 3, 2009, file no. 2009/17/0070).

A dangerous attack is defined in § 16 para. 2 no. 1 SPG as the threat to a legal interest through the unlawful realization of the elements of a criminal offense that is intentionally committed and is not merely prosecuted at the request of an injured party, provided it concerns an offense under the Criminal Code.

However, identification treatment is not required if "the specified circumstances or the possible risk of recidivism or expected likelihood of clarification" do not sufficiently indicate why – for example, due to the nature or execution of the act or the personality of a complainant – the authority concerned deems the identification treatment necessary.

holds (cf. VwGH 18.06.2014, 2013/01/0134; 20.03.2013, 2013/01/0006; 31.05.2012, 2011/01/0276; 19.04.2012, 2012/01/0011).

As already stated by the Administrative Court (Upper Austria) in case number: LVwG-780266/7/KLi/NF dated

April 21, 2023, the mere announcement by the appellant that he has often not received a finder's fee in the past and that this should be different in the present case does not allow for the conclusion that the appellant could also be a repeat and/or recidivist offender. Furthermore, the appellant voluntarily went to the police station, was already known to the respondent in an official capacity, and could also be found at his address. Therefore, there were no indications that the appellant would evade cooperation with the work of the authority concerned.

Due to the personality of the appellant and the circumstances of the specific act, it was thus to be assumed at the time of the collection of the identification data that there was an extremely low probability that the appellant would commit further dangerous attacks and evade prosecution.

Therefore, prevention of these attacks was not necessary. Consequently, the respondent should have concluded based on this prognosis that the identification treatment was not necessary.

Thus, the respondent unlawfully processed the personal data of the appellant.

Therefore, a decision was to be made accordingly.

Since the respondent, as established, has deleted the relevant data of the appellant, no order for performance was to be issued.